

IN THE UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

DAVIS MATTHEW AARON,

Plaintiff,

V

PASCO COUNTY FLORIDA,

Defendant.

Case No.: 8:24-cv-02907

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AMENDED COMPLAINT FOR CIVIL RIGHTS VIOLATIONS UNDER **42 U.S.C. § 1983** and

**Posse Comitatus Act (18 U.s.c. § 1385)**

Respectfully submitted



MATTHEW AARON DAVIS

4624 Charter St.

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Date: December 22 2024

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AMENDED COMPLAINT FOR CIVIL RIGHTS VIOLATIONS UNDER 42 U.S.C. § 1983

I. INTRODUCTION

This is a civil rights action brought under **42 U.S.C. § 1983**, **18 U.S.C. § 1385** and related federal statutes, seeking damages and injunctive relief for violations of the Plaintiff's constitutional rights under the **First, Second, Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments** to the U.S. Constitution and a **Pose Comitatus Act** violation by the Army-Marine Corps. The Plaintiff, Matthew Aaron Davis, alleges that Pasco County, Florida and its agents engaged in unlawful conduct, including false arrest, false imprisonment, malicious prosecution,

deprivation of due process, and systematic human trafficking involving the Plaintiff's children.

This action seeks to remedy the wrongful persecution and systematic abuse suffered by the Plaintiff and his family, which includes human trafficking of his children through manipulation of dependency and criminal proceedings, orchestrated by Pasco County officials.

## II. JURISDICTION AND VENUE

This Court has jurisdiction over this action pursuant to **28 U.S.C. § 1331** (federal question jurisdiction) and **28 U.S.C. § 1343** (civil rights jurisdiction) because the Plaintiff's claims arise under the Constitution and laws of the United States.

Venue is proper in the Middle District of Florida pursuant to **28 U.S.C. § 1391(b)** because a substantial part of the events giving rise to these claims occurred in Pasco County, Florida, which is located within this judicial district.

Plaintiff brings this action under **42 U.S.C. § 1983** to redress the deprivation of his rights secured by the U.S. Constitution and federal law.

Plaintiff's claims arise under the U.S. Constitution, **42 U.S.C. § 1983**, and **18 U.S.C. § 1385 (Posse Comitatus Act)**, due to the unlawful involvement of military personnel in directing local law enforcement activities in Pasco County, Florida. Venue is proper under **28 U.S.C. § 1391(b)**, as the events occurred within this district.

## III. PARTIES

Plaintiff: Matthew Aaron Davis is a resident of Zephyrhills, Florida. At all relevant times, the Plaintiff was a public servant working as a first responder on inactive status for Pasco County, where he resided.

Defendant: Pasco County, Florida, is a governmental entity responsible for the actions of its agents, including the Pasco County Sheriff's Office, the Pasco County State Attorney's Office, Pasco County Public Defenders Office and the Pasco County Board of County Commissioners.

#### IV. STATEMENT OF FACTS

The Plaintiff, a long-time resident of Pasco County, faced a series of unlawful actions beginning in 2020, including wrongful arrests, malicious prosecution, police retaliation, lack of due process, ineffective counsel, loss of right to bear arms, loss of right to vote, loss of right to speedy trial, unlawful detention, and the coerced plea agreement all directed by Plaintiff's girlfriend and mother to children in common brother. US Army-Marine Corps Dean Marshall Hills Jr that facilitated the separation from his children under fraudulent legal pretenses. On December 9, 2020, Plaintiff was arrested on charges of domestic battery at his residence in Zephyrhills, Florida (Case No. 512020MM004755MMAXES). These charges were dropped on February 11, 2021, when the State's Attorney chose not to file formal charges, but the wrongful arrest led to the removal of Plaintiff's children by the Department of Children and Families.

During this time, the Plaintiff was subjected to a child dependency case (Case No. 512020DR005966DRAXES) that manipulated the custody of his children, transferring them from the Plaintiff's sole custody to foster care without just cause or due process, despite the absence of formal charges.

The Pasco County Sheriff's Office and the State Attorney's Office collaborated to orchestrate Plaintiff's ongoing legal troubles, which culminated in further arrests for burglary, fraud, and

dealing in stolen property (Case No. 512021CF001143CFAXES) in March 2021, and aggravated assault in July 2022 (Case No. 512022CF003171CFAXES).

Throughout this period, the Plaintiff was the target of investigational gangstalking, electronic harassment, and other forms of retaliation. Including extralegal intimidation by local authorities. These actions were intended to isolate, torture and coerce him into signing false plea agreements. While denying his fair council and speedy trial, thereby allowing the unlawful human trafficking of his children to continue.

The Plaintiff attempted to seek justice through multiple legal channels, including filing complaints with the FBI, Department of Justice and United States military but these efforts were thwarted by the Pasco County officials and their agents, who obstructed access to necessary evidence and suppressed his right to a fair trial. While intercepting any and all correspondence to the Federal Government or military.

## V. LEGAL CLAIMS

Count I: Violation of the **First Amendment** ( Freedom from Retaliation of Law Enforcement)  
The Defendants willfully and intentionally pursued retaliation against Plaintiff and his family for attempting to exercise their right to speedy trial as explained in **Hartman v. Moore, 547 U.S.**

**250 (2006)** and in **Barker v. Wingo, 407 U.S. 514 (1972)**

Count II: Violation of the **Second Amendment** (Right to Bear Arms)

Following the coerced false conviction of felony charges Plaintiff was stripped of his **Second Amendment** right to bear arms being that these coerced convictions are his first felony convictions as defined in **18 U.S.C. § 922(g)(1)** also in **District of Columbia v. Heller (2008)**,

Count III: Violation of the **Fourth Amendment** (Unlawful Arrest and Seizure)

The Defendant, through its agents, unlawfully arrested the Plaintiff without probable cause, in violation of his rights under the **Fourth Amendment** to the U.S. Constitution, as interpreted in

**Terry v. Ohio, 392 U.S. 1 (1968).**

The wrongful arrests on December 9, 2020, March 9, 2021 and July 30, were not based on valid legal grounds and were used as pretext to initiate child dependency proceedings while concurrently initiating a State Attorney Investigation and prolonging court events to unlawfully seize Plaintiff's children.

Count IV: Violation of the **Fifth and Fourteenth Amendments** (Due Process and Equal Protection) The Defendant violated Plaintiff's **Fifth and Fourteenth Amendment** rights by depriving him of due process in both the criminal proceedings, as guaranteed under **Goldberg v. Kelly, 397 U.S. 254 (1970)** and **Gideon v. Wainwright, 372 U.S. 335 (1963)**. The ongoing manipulation of the criminal proceedings and the failure to provide fair legal representation deprived Plaintiff of his constitutional right to due process.

Count V: Violation of the **Sixth Amendment** (Right to a Fair Trial). The Defendant's agents provided ineffective assistance of counsel and obstructed Plaintiff's right to a fair trial by coercing plea deals and failing to address **Brady** violations and the lack of due diligence in violation of the **Sixth Amendment**, as established in **Strickland v. Washington, 466 U.S. 668 (1984)**. The excessive withdrawing and reassigning of legal counsel after withdrawing from the criminal proceedings, of nine in total, before coerced plea agreement constitutes ineffective counsel

Count VI: Violation of the **Eighth Amendment** (Cruel and Unusual Punishment) Plaintiff was subjected to excessive bail and prolonged detention without legal justification, gangstalking



and electronic harassment in violation of the **Eighth Amendment's** prohibition on cruel and unusual punishment, as set forth in **Furman v. Georgia, 408 U.S. 238 (1972)**.

Count VII: Violation of the **Posse Comitatus Act (18 U.S.C. § 1385)**

The Defendant, through its agents, violated the Posse Comitatus Act by allowing Dean Marshall Hills Jr., a high-ranking U.S. Army-Marine Corps official, to unlawfully direct and oversee the Plaintiff's State Attorney investigation. His involvement in local law enforcement activities, without proper legal authority, constitutes an unauthorized use of military power in domestic law enforcement. This violation contributed to the wrongful arrest, due process violations, and unlawful actions against the Plaintiff, including the trafficking of his children.

VI. PRAYER FOR RELIEF

WHEREFORE, the Plaintiff requests that this Court grant the following relief:

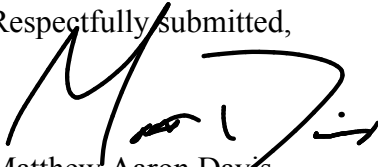
A declaratory judgment that the Defendant's actions violated Plaintiff's constitutional rights under the **First, Second, Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments**.

Injunctive relief compelling the immediate return of Plaintiff's children to his custody and preventing further unlawful actions by Defendant.

Compensatory and punitive damages for the emotional distress, malicious prosecution, mental anguish, wrongful arrest, false imprisonment and the Constitutional violation of due process, effective counsel and the irreparable loss of relationship family ties between the Plaintiff, his children and the children's mother. caused by the Defendant's unlawful conduct in the amount of \$100 million.

Attorney's fees and costs in pursuant to **42 U.S.C. § 1988** and Any other relief the Court deems just and proper.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Matthew A. Davis', written over the printed name.

Matthew Aaron Davis

4624 Charter St.

Zephyrhills, FL 33542

Email: DavisMatthewA2024@gmail.com

Phone: 655-212-3599

Date: December 22, 2024

THE UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

DAVIS MATTHEW AARON

Plaintiff,

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PASCO COUNTY FLORIDA,

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the Complaint for Civil Rights Violations under 42 U.S.C. § 1983, along with any exhibits and attachments, was served upon the following parties by [United States Postal Service Certified Mail, return receipt requested] on this 5th day of January, 2025, or through electronic service as required by local rules, in accordance with the

Federal Rules of Civil Procedure:

Pasco County Attorney's Office  
Pasco County Government Center  
8731 Citizens Drive, Suite 340  
New Port Richey, FL 34654

Under penalties of perjury, I declare that the foregoing Certificate of Service is true and correct  
to the best of my knowledge.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Matthew A. Davis', written over the printed name.

Matthew Aaron Davis

4624 Charter St

Zephyrhills, FL 33542

DavisMatthewA2024@gmail.com

Phone: 655-212-3599

Date: December 22, 2024

THE UNITED STATES COURT  
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MOTION TO REQUEST CERTIFIED DOCUMENTS

Plaintiff, Matthew Aaron Davis, pro se, respectfully moves this Honorable Court to direct the Sixth Judicial Circuit Court of Pasco County, Florida, to provide certified copies of records in the following cases:

- 1 2021CF001173CFAXES
2. 2020DR005966DRAXES
3. 2020MM004755MMAXES
4. 2022CF003171CFAXES

In support of this motion, Plaintiff states:

1. Plaintiff asserts violations of his rights under the First, Second, Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments in this federal action.

2. The requested case documents are crucial evidence to substantiate Plaintiff's claims of constitutional violations and due process infringements in state court proceedings.

3. Plaintiff, due to indigence, is unable to afford the fees for certified copies of these documents.

WHEREFORE, Plaintiff respectfully requests this Court to order the Sixth Judicial Circuit Court to provide the certified case documents or, alternatively, waive the associated fees due to Plaintiff's indigence.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'M. Davis', with a stylized flourish at the end.

Matthew Aaron Davis  
4538 Charter St  
Zephyrhills, Florida 33542  
Phone: 655-212-3599  
Email: MadavisFS20@gmail.com

Dated: December 22, 2024

